



POLICE DEPARTMENT

July 31, 2013

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Hector Rodriguez
Tax Registry No. 916569
Housing Borough Manhattan
Disciplinary Case No. 2010 2139

The above-named member of the Department appeared before the Court on August 8, 2012, February 22, 2013, February 26, 2013, and April 16, 2013, charged with the following:

1. Said Sergeant Hector Rodriguez, assigned to Bronx Vice, on or about and between January 2007 and May 2007, did knowingly and unlawfully attempt to possess a controlled substance, to wit: said sergeant did attempt to possess and/or ingest anabolic steroids and/or human growth hormones for purposes outside the normal course of standard medical care. (*As amended*)

N.Y.S. Penal Law 110 / 220.03 ATTEMPTED CRIMINAL POSSESSION OF A
CONTROLLED SUBSTANCE
IN THE SEVENTH DEGREE

The Department was represented by Lisa Bland, Esq., Department Advocate's Office.
Respondent was represented by Stephen L. Drummond, Esq., Drummond & Squillace PLLC.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Not Guilty.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Sergeant Larry Flunory and Drug Enforcement Administration (DEA) Special Agent Charles Manning as witnesses.

Sergeant Larry Flunory

Flunory was assigned to the Internal Affairs Bureau (IAB). In July or August 2008, IAB received an allegation of anabolic steroids abuse. The information came from the DEA and was made by former Police Officer Person A. He had been arrested for steroids distribution and money laundering. Person A was arrested, and resigned, on September 20, 2007.

Flunory spoke to DEA Special Agent Charles Manning about the investigation. Manning told him that it was a major international steroids investigation that led to over 100 arrests, including that of Person A. The focus was on distribution over the Internet. One of the companies involved was Advanced Muscle Labs (AML). Person A "started giving up other police officers throughout the country."

Flunory first met Person A at the latter's residence on September 19, 2008, and interviewed him (see Department Exhibit [DX] 1, transcript of recording). Person A said that he supplied steroids to Respondent. Person A knew Respondent through a mutual friend, Person B. Person B also had been a member of the Department before retiring with a vested interest and getting a job with the Port St. Lucie, Florida Police Department (PSLPD). Person B told Person A that he knew someone who "wants to get bigger and he wants some steroids." According to Person A, Respondent contacted Person B about this.

Person A instructed Flunory to go to his old locker at Transit District 12. There, as indicated by Person A, was a prepaid cell phone with Respondent's phone number listed in the contacts (see DX 2, screen shot of cell phone). Person A added that the DEA executed a warrant at his house and obtained "items" that would corroborate his claims to Flunory about Respondent. Flunory's investigation revealed approximately 20 telephone calls between Person A and Respondent in the period of March to May of 2007.

Manning and Person A described the steroids distribution system that was the focus of the investigation. Buyers set up a prepaid debit card account, which could be done using an alias. The money then could be transferred to the seller's account.

Flunory's investigation revealed that Person A only sold steroids. A friend of his, Person C, sold human growth hormone (HGH). Person A asserted that to obtain HGH, Respondent would transfer money to Person A, and Person A would notify Person C by e-mail. Person C sent the HGH through United States Postal Service (USPS) mail. There was a tracking number associated with the mailing.

Manning gave Flunory several e-mails between Person A and Person C concerning Respondent (see DX 3, e-mails). Flunory learned that HGH was sent to Respondent's residence in January 2007 for a cost of \$385. The USPS confirmed that the package was sent from the general location of Person C's residence.

After reviewing the e-mails, Flunory re-interviewed Person A on February 4, 2009 (see DX 4, transcript of recording). Person A had told him during the first interview that he had a corroborating document on his computer, adding, "Just give me a couple of days and let me get this to you." At the February 2009 interview, Person A gave Flunory a "printout" of a document that he said was from his computer. The document listed Respondent's name and address, and

the items that Person A said he sent Respondent (see DX 5, screenshot of Microsoft Excel spreadsheet). The spreadsheet listed drugs or medications. Person A said that he sent steroids in liquid form and needles to Respondent in May 2007. The steroids had a three-month cycle.

Flunory also conducted an unrecorded interview with Person B over the phone.

Person B agreed that he knew Respondent and Person A, but when Flunory "started talking about the case," Person B said, "I think I need a lawyer" and hung up.

Flunory conducted an official Department interview with Respondent on September 30, 2009 (see DX 6, transcript). Respondent admitted knowing Person B. He also said that he knew "█" or "█" Respondent never actually met █ and only communicated with him over the telephone. Respondent did not identify Person A from a photo array.

Respondent told █ that he wanted "something to make him bigger," but when Respondent received the USPS box containing vials and syringes in January 2007, he threw the box in the garbage because the "needles made him feel uncomfortable because he's a Police Officer." Respondent paid for this shipment by prepaid debit card, which █ said was necessary for "tax purposes." He did not receive a refund for the order, but did receive another package from █ in May 2007.

Flunory conducted a third, recorded interview with Person A on October 29, 2009 (see DX 7, transcript). During this interview, Person A stated that Respondent never complained about the products he received, nor did he ask for a refund.¹ The total price for the steroids was \$1,000.

On cross examination, Flunory agreed that in November 2008, Respondent was subjected to random drug tests for all drugs, including steroids. He tested negative. At the time

¹ DX 7 generally was consistent with Flunory's testimony. At one point, however, Flunory asked, "All right, did he ever complain about when he received that HGH was that this is not what I wanted, I don't want-." The transcript recorded Person A's answer as, "[interposing] Yes."

Respondent was tested, he did not know that he was under investigation for steroids usage.

Flunory stated that IAB surveilled Respondent's home on numerous occasions but for a total of six or seven hours. They also searched through his garbage. No contraband was discovered in the garbage. IAB also visited local fitness centers in search of corroborating evidence, but were unsuccessful. No steroids were recovered during the investigation into Respondent.

Flunory was aware that Person A's driver license had been suspended for failure to pay parking tickets, he was a cooperating witness and was facing somewhere under ten years of imprisonment. Flunory nevertheless was unconcerned about Person A's credibility.

Flunory stated that Person A began his term of incarceration in federal prison on May 21, 2010. Once he was sentenced, to a term of a year and a day, he stopped cooperating with Flunory. Flunory went to visit Person A on January 22, 2011, and Person A refused to speak to him.

Flunory claimed that he did not believe Person A was cooperating with him and the DEA so that he could protect himself. He admitted that he did not factor this possibility into his investigation.

Respondent used his personal phone to communicate with Person A while Person A used a prepaid phone.

Person A said in the first interview that he mailed the steroids to Respondent from Bronx County. It was Flunory's understanding that two packages were sent, one by Person A and the second by Person C. Person A stated during the second interview that he would outsource some of his supplies.

Person A provided Flunory with the DX 5 spreadsheet about three months after Flunory requested it. This listed Respondent's address, drugs requested and dates. Person A did not give

Flunory the worksheet the first time he visited. Flunory noted that when IAB arrived at Person A's home unannounced, he had people over, and there were discs all over the place.

Flunory spoke with Person C on January 24, 2012, and recorded the conversation (see Respondent's Exhibit [RX] A, transcript; RX A1, recording). Person C stated that he never sold steroids to anyone with a Hispanic name. Nor did he send steroids to New York. Person C was aware of the e-mail service and prepaid debit card mentioned by Person A, as well as how much steroids cost. According to Flunory, Person C was not arrested because he was selling HGH, not steroids.

Person A stated in the third interview that the HGH came in intravenous form.

Respondent told Flunory that what he received in the mail was not what he wanted because "it has needles and he's a Police Officer and he don't take no needles." That was why Respondent threw the steroids in the garbage.

Flunory stated that Person B resigned from PSLPD after he was "asked" to take a steroids test.

On re direct examination, Flunory alleged that Respondent directed Person A to send steroids to his residence and directed Person C to send HGH.

DEA Special Agent Charles Manning²

Manning had worked for the DEA for 16 years. In June 2006, he became involved in a large-scale multiagency investigation called Operation Raw Deal that targeted underground steroids laboratories. The steroids were sold over the Internet using encrypted e-mail

²

At the time of trial, Manning was assigned to a long-term investigation in Brazil. Upon the Department's application and over Respondent's objection, the Court allowed him to testify via videoconference. Manning was physically located during his testimony at his Brasília office.

communications. The laboratories accepted payment in the form of cash sent through the mail or "prepaid credit cards."

One of these businesses was AML, which was owned by Person A and Person D. AML advertised on several steroids-related websites. Person A was primarily responsible for the communications and accounts receivable while Person D did most of the manufacturing and shipping.

As a result of the investigation, Person A was arrested in September 2007 for money laundering and conspiracy to distribute steroids. At a January 2008 proffer session, Person A identified Person B and Respondent as two members of the Department who used steroids. Person A stated that Person B was a bodybuilder who used steroids and ordered them from AML because he knew that Person A also was a Department member. Person B also ordered HGH on one occasion.

Person A stated in the proffer that Respondent also wanted steroids for personal use. He ordered them over the phone to his residence in [REDACTED], New York, and paid for them by prepaid card. Person A and Respondent never met in person, and Person A did not think Respondent even was aware that Person A was a member of the Department. Person A identified Respondent as an Army reservist who worked the midnight tour in the Bronx.

Manning testified that e-mail records showed that in January 2007 Person A placed an order with Person C for HGH to be sent to Respondent's residence. In May 2007, Person A sent an e-mail to Person D with instruction to send to Respondent's residence a package that contained the steroids Anavar and Winstrol, Clomid (an estrogen regulating women's fertility drug that can be used illicitly by bodybuilding men), testosterone and syringes.

In the proffer, Person A also discussed a college baseball player who had ordered large amounts of steroids and then resold them to other college athletes. Investigators were able to corroborate Person A's claim with e-mails, interviews of the baseball player, and interviews of several of the other athletes involved.

On cross examination, Manning confirmed that the Person A proffer was not recorded. A DEA intelligence analyst took notes during the interview, however.

Manning conceded that Person A could have received a prison sentence of five years, but instead received a reduced sentence as a result of his cooperation. He was sentenced in May 2010.

Manning did not recall AML selling any legal substances, such as supplements. He did not recall "anything else that would be sold in stores [like GNC or The Vitamin Shoppe] easily." AML advertised on steroids-related forum websites. The sites showed products and price lists from various labs. Anyone who registered as a member on the sites and was accepted could view the information. Manning believed that the illegal nature of AML was apparent to anyone who viewed it on the sites. He did not know, though, if Respondent ever went to these websites. DX 8 was a screenshot or printout of a message placed by AML on one of the websites offering various steroids related products for sale.

Manning conceded that Person A mentioned "Hector Hernandez" during the proffer. It was the [REDACTED] address in Person A's e-mails, however, that led Manning to determine that Person A meant Respondent. Manning did not know if Person A simply made a mistake with the name or if he intentionally provided the wrong name to investigators.

Steroids were recovered in Person A's home, but Manning received no confirmation from USPS that steroids actually were mailed to Respondent's address.

Manning never spoke with Person D or Person C, as other investigators executed the warrant on Person D's home. Person C "was not fully identified in our investigation" so investigators did not go to his house. They confirmed that Person A sent money to an Illinois address though.

On re-direct examination, Manning explained that the DEA did not investigate the sale or distribution of HGH, as it was not considered a controlled substance. The Food and Drug Administration investigated HGH.

Investigators recovered four bottles of injectable steroids and one bottle of oral steroids from Person A's residence. They recovered 22 bottles of steroids from Person D's home.

AML's product list contained three non-steroidal products: clenbuterol, Nolvadex (a breast cancer drug that inhibits estrogen) and Clomid. Manning explained that these products commonly were taken by steroids users. For example, clenbuterol (actually a bronchodilator) was used to burn fat after a user already had bulked up with steroids. None was available over the counter.

On re-cross examination, Manning stated that while it was possible Person A deliberately lied in the proffer, Manning concluded that he was telling the truth after corroborating much of what Person A said.

Respondent's Case

Respondent called Robert Hoyt and Shawn Harris as witnesses, and testified on his own behalf.

Robert Hoyt

Hoyt retired as a Lieutenant after 22 years of Department service. He first met Respondent in 2002 when they were assigned to Narcotics Borough Bronx. Hoyt was a sergeant there and Respondent was one of his detectives. Hoyt testified that Respondent was one of his most trusted and favorite officers. He described Respondent's integrity as beyond reproach.

On cross examination, Hoyt testified that he and Respondent worked together for approximately a year and a half. Hoyt never had been to Respondent's home or been present when he opened his mail. Hoyt retired from the Department in June 2012.

Shawn Harris

Harris was a sergeant in the Mount Vernon Police Department. He had worked there for 19 years. He also had served for 22 years in the United States Navy and currently was a petty officer, first class, assigned as Master-at-Arms (the equivalent of a military police officer) in the US Navy Reserve (USNR). Harris served on active duty from 1990 and 1992 and was deployed to Iraq.

Harris first met Respondent in 2003. In 2005, they were deployed together to Iraq. Harris described Respondent as having the "highest integrity of just about anybody" he knew. Harris often selected Respondent to accompany him on dangerous convoys in Iraq because "whenever you pick anybody on the team, you want the best people and you want people you can trust and depend on."

On cross examination, Harris confirmed that he and Respondent had a close relationship. They visited each other's homes and knew each other's families. Although Respondent told

Harris that he was facing disciplinary action at work, he did not tell Harris the specific nature of the charges against him. Harris never had been present when Respondent opened his mail.

On re-direct examination, Harris explained that as a police officer he was prohibited from associating with people who engaged in criminal activity. For that reason he chose his friends carefully. Had he believed that Respondent used steroids, he would not have brought him home to meet his family.

Respondent

Respondent was a 17-year member of the Department. Respondent attended Xavier High School (in New York City) and joined the Junior Reserve Officers Training Corps (JROTC). By the time he graduated he was a JROTC supervisor of younger students at the school. He started college at Fordham University and joined the US Marine Corps Reserve (USMCR) in June 1990. While in the Marines, he was responsible for managing the payment of the soldiers in his unit. He was honorably discharged after four years of service. In March 2001, he joined the USNR. He was deployed to Iraq in 2005 and 2006 and currently was a commissioned officer. Although he dropped out of Fordham to become a police officer after his children were born, he returned to school years later, graduating from John Jay College of Criminal Justice in 2008.

While in Iraq, Respondent started going to the gym and lifting weights. He read muscle and fitness magazines and learned about body-developing supplements. He took creatine and different protein supplements. He obtained these substances from "different vitamin shops or web stores that would send stuff over to us via mail." It was not unusual for people who lifted

weights to take these kinds of supplements, and Respondent did not think there was anything wrong with them.

When Respondent returned home, he continued to lift weights. He discovered, however, that his wife had cheated on him while he was in Iraq and wanted a divorce. Respondent was “dealing still with the anxiety of just returning home and thinking you are coming home to a happy home to find out that now you are being asked to leave your home; it is not a good feeling.” This exacerbated his financial situation, as he had to pay legal fees and find a new place to live.

While working as a patrol supervisor in the 52 Precinct, Respondent’s executive officer was Captain Derrick Corrado. Respondent got the impression that Corrado did not care for the people who worked in the command. Respondent occasionally had respectful disagreements with Corrado over Corrado’s treatment of police officers assigned to the precinct. Respondent felt it was his duty to stand up for the officers who reported to him. Corrado also once made a derogatory comment about military reservists, remarking that Respondent was “one of those scammers” when Respondent told him he had military duty.

Respondent and Corrado worked together for a little less than a year before Corrado was transferred to IAB. Two years later, Corrado initiated the charges that currently were pending against Respondent.

Respondent met Person B when they worked together in the Narcotics Division as undercover officers, and they became friends. Person B later moved to Port St. Lucie with his family. Shortly after Respondent’s return from Iraq, he saw Person B while in Florida visiting Respondent’s parents. Respondent was surprised by how bulked up Person B had become. Among other subjects, they discussed their weightlifting routines. Person B informed

Respondent that he was taking protein, creatine and multivitamins. Person B told him that he was getting these substances at a discount from a friend who was starting a new lab.

Respondent, who had been paying between \$150 and \$250 per order of supplements, wanted the discount because of his financial difficulties. Person B gave Respondent his friend's phone number.

Respondent had known Person B for nine years at that point. He had no reason to believe that Person B was involved with anything unlawful.

Respondent called Person B's friend, whom he knew as ■ or ■. He did not know at the time of ordering that ■'s last name was Person A. Respondent told Person A that he wanted the same thing Person B bought. Person A told Respondent that he was selling the products at a reduced price as a way of breaking into the market. Person A also told him that payment should be made via prepaid debit card, and insisted on this when Respondent offered to send him a check.

Respondent gave Person A his ■ address as the shipping address. Respondent's 17- and 16-year-old children were living there at the time. Respondent never would have exposed his children to steroids, much less for the consequences in his matrimonial litigation.

When the package arrived at Respondent's residence, it contained "different bottles, pills." There also "might have even be[en] some needles, injectables." There were substances in liquid and solid form, including powders. Further, when Respondent had purchased supplements from a store like GNC in the past, they came with labels that had reliable instructions. The delivery that he received from Person A, in contrast, "looked like someone put them together in a garage. . . . [T]here was no labels on certain things, and on other things, the labels were coming

off, like they were glued together with a glue stick.” The instructions were “actually written on a piece of paper” and there was nothing written on the bottles themselves.

Based on the packaging, Respondent did not feel comfortable using the substances he received from Person A and threw them in the garbage. Respondent called Person A to complain and ask for a refund. He also called Person B because he was angry about him vouching for Person A.

Respondent denied taking steroids. Respondent neither intended to obtain steroids nor believed at the time that what Person A had sent him was illegal.

Person A later called Respondent, apologizing about the delivery and promising to make efforts to correct it. Person A told Respondent that he was working with a new lab and would send Respondent what should have been sent originally. When Person A asked that Respondent send him more money, Respondent replied, “I don’t have any money to send you, so if you want to send it, feel free.” When a second delivery subsequently arrived at Respondent’s residence, it looked “[p]retty much the same as the first. They were packaged in a packaging that was very off, nothing that you would find in GNC or any kind of Vitamin Shop[pe] of reputable substance.” Respondent believed that this second shipment was sent directly from Person A.

Respondent again threw out the delivered items and called Person A to curse him out. That phone call was the last contact he had with Person A. They never met in person.

Respondent claimed that the investigators at his official Department interview, including Flunory, told him that the District Attorney’s Office found no evidence of criminal activity and that the Department’s investigation against him was over. Respondent was scheduled to be promoted in May 2010, and the investigators allegedly told him that there would be no delay. When he later was passed over for promotion, he was told that “a certain captain had a special

interest in the case.” Respondent took this to mean that the matter had become a “personal vendetta.”

On cross examination, Respondent testified that when he first started taking supplements in 2005 and 2006, he ordered them over the Internet from places like GNC, The Vitamin Shoppe or health food stores.

Respondent confirmed that he first met Person B in 1999 or 2000. Person B left the Department before Respondent left for Iraq in 2005. After that point they would see each other maybe once every other year when Respondent visited his parents in Florida. When Respondent saw Person B after his return from Iraq, both he and Person B had gotten more muscular. Both of them had been using creatine and protein shakes, but Person B told Respondent that he was using a “special blend.” New products were common in the supplements industry, Respondent testified. He did not recall if this new blend had a name and did not ask Person B about Person A’s qualifications.

Respondent told Person A over the phone that he was a police officer. He also told Person A that he wanted to bulk up. Although Person A informed Respondent that he had a website, Respondent never went to the website to see what substances Person A was selling.

Respondent never had used a prepaid debit card before like the one Person A required. Person A instructed him on how to use this payment method, telling him to go to CVS or Rite Aid, buy a card, and load funds onto it. “[T]hen I call him with . . . like a credit card number, and that’s how he retrieves his money.” Respondent testified that he was unbothered when Person A told him he used this method for tax purposes.

Respondent called Person A back because he did not know exactly what substances had been delivered. He told him, “I’m a police officer, I can’t take this stuff.” He was concerned

about the safety of the products and the possibility of injury if they were impure. He did not think Person A would send him anything illegal because Person A knew that he was a police officer and also because Person B utilized Person A's products. When Respondent called to complain about the delivery, Person A even told him that the substances were not steroids.

Respondent did not recall exactly how much he paid Person A, but it "wasn't a lot of money. . . . a lot less than five hundred. I don't even think it was two hundred. I think it might have been maybe a hundred, if even that."

On re-direct examination, Respondent admitted that he informed Person A in their initial conversation that he was a police officer because he wanted Person A to understand that he was "someone of the law."

Upon questioning by the Court, Respondent testified that the delivery he received from Person A was approximately half the price it would have been had he ordered it from GNC or The Vitamin Shoppe.

When asked why he threw out the first package before asking for a refund, Respondent testified, "I think it was more out of anger. . . . I – guess I felt betrayed." He also did not want his children to find the items.

FINDINGS AND ANALYSIS

Respondent is charged with the attempted possession of steroids. The Drug Enforcement Administration and other agencies had an anti-steroids investigation called Operation Raw Deal. Then-Police Officer was arrested as the proprietor of an underground steroids laboratory. At a federal proffer session, Person A alleged that others, including other members of the Department, were involved as buyers of steroids. Person A stated that a former police officer

now with the Port St. Lucie, Florida PD, Person B, introduced him to Respondent as someone interested in purchasing steroids. Respondent allegedly purchased human growth hormone and steroids from Person A, although the HGH actually was provided by another, Person C. The HGH was delivered in January 2007 and the steroids in May 2007.

Respondent admitted that he ordered items from Person A but denied intentionally ordering steroids. He liked to read muscle and fitness magazines, lift weights and take supplements. He was experiencing financial difficulties as the result of a divorce, however, and needed a discount. Additionally, Person B was a friend of his and told him about a new supplement he had gotten from Person A. Respondent ordered over the phone from Person A, paying through a prepaid debit card accessible by Person A. When the items arrived, however, Respondent was dismayed. They did not appear to be produced professionally and were barely even labeled. They also came with vials and needles. As a police officer, Respondent did not want to take these items. He threw them in the trash but later asked Person A for a refund. The same thing happened when Respondent received a second package. Person A strung him along but never refunded his money.

Thus, Respondent did not necessarily dispute the Department's assertion that he received steroids and HGH; he asserted that he never intended to receive steroids and HGH. The Department argued that the circumstantial evidence pointed to the conclusion that Respondent knew he was ordering steroids.

Respondent did not recall exactly how much he paid for the items but knew that it was a substantial discount from a store like GNC or The Vitamin Shoppe. Upon examination by the Court, he said that he did not believe it was even \$100. The Department sought to contrast this with an alleged answer at Respondent's official interview (DX 6) in which he said that it was

under \$500. The Department's point was not to quibble with Respondent's correct math but to show that he was downgrading his recollection of the price to bolster his argument that he legitimately ordered from Person A to save money on legal supplements.

The exchange in the interview was as follows:

[Flunory]: [D]o you recall how much these supplements cost?

[Respondent]: No, I don't remember.

[Flunory]: Okay. Is, do you have any, uh, was it over \$1,000, under \$1,000?

[Respondent]: Oh, under \$1,000.

[Flunory]: Alright. Under \$1,000? Was it over \$500, under?

[Respondent]: No, it was under.

Respondent did not, therefore, state that the payment was only slightly less than \$500. In sum, the credible evidence about the price supported Respondent's contention that he was ordering this way to obtain a discount.

The Department pointed to other factors that it contended should have made Respondent realize he was getting steroids. He was ordering from someone whose actual name he apparently did not know. He did not know anything about the business and did not inquire about where online he could find more information. He had to pay for the products by a shady debit-card scheme in which Respondent loaded funds onto Person A's card for the latter to withdraw. He knew, at the very least, that this was for purposes of tax evasion on Person A's part.

The problem with the Department's argument is that it fails to take into account the realities of modern commerce, both online and in person. The Internet abounds with sites like Craigslist through which products can be bought and sold for cash or its equivalent, with little to no identification of the seller necessary. Although there was no evidence that the debit card system was illegal, and in fact was sold at legitimate shops like CVS or Rite Aid, it was unconventional. So perhaps Respondent should have been alerted that Person A might not have

been a legitimate business concern by his payment methods. But it does not follow that Respondent should have known Person A was selling steroids.

The Department asserted that Respondent's failure to perform due diligence concerning Person A means that he knew or should have known that Person A was selling steroids. Respondent, however, testified that he took precautions before ingesting anything Person A sent him. He saw that the items sent through Person A contained various unlabeled powders and vials, as well as hypodermic needles. He told Person A that he was a police officer and could not take these items. Thus, Respondent recognized that (a) he did not receive what he thought he ordered, and (b) the delivered products were not something a police officer should take. His attribution of this to health fears rather than the possibility that the products were illegal does not mean he failed to do due diligence. Respondent's testimony still indicated that he did not intend to receive steroids. His asking questions takes his case out of the realm of others where this tribunal has rejected the affirmative defense that the ingestion of steroids was unknowing. See, e.g., Case No. 2011-4578, p. 25 (Sept. 4, 2012) (such claim "is undone where the record establishes that Respondent displayed a determined and purposeful ignorance regarding the substance he ingested." (citation omitted)).

No steroids were found at Respondent's home and he tested negative for steroids and all drugs in November 2008. This is the truest test for steroids use because steroids have the potential to cause dependency. See, e.g., Case No. 83969/08, pp. 36, 70, 103 (Feb. 18, 2011). The Department, however, explained the negative test by noting that the tests came long after Person A was arrested in September 2007. But the second delivery to Respondent came in May 2007 and was a three-month steroids cycle. If Respondent liked what he was getting, he should have ordered more before Person A's arrest. It was undisputed, however, that Person A made no

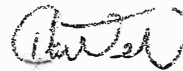
further deliveries to Respondent after May 2007, and there was no evidence that Respondent obtained steroids or HGH anywhere else.

Person A asserted in his interviews that Respondent intended to purchase steroids and HGH, but produced no e mails, text messages or voicemails to back up his claim. He stated without explanation that he did not want to e mail Respondent (see DX 4, second Person A interview, Feb. 2009). Moreover, Person A initially cooperated both with the Raw Deal investigation and the Department's investigation into Respondent. He apparently pleaded guilty and later was sentenced to one year and one day in prison, a term whose leniency well may have been secured through his cooperation pursuant to United States Sentencing Guidelines § 5K1.1. Once he was sentenced, however, he abruptly stopped cooperating with the Department. The import of this is that when Person A needed something, he gave investigators voluminous information. When he no longer needed them, he ceased to cooperate. This gives rise to questions about his credibility and reliability.

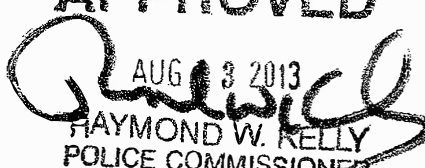
As a party to the action, Respondent was an interested witness. See People v. Agosto, 73 N.Y.2d 963, 967 (1989) (criminal defendant is interested witness as a matter of law); Coleman v. New York City Transit Auth., 37 N.Y.2d 137, 142 (1975) (an actor in the transaction at bar in civil case, having motive to shield self from blame, is interested witness, even if not a party). And the Court does not necessarily find Respondent to be the most credible witness. Some of his testimony, like his claim that he found nothing suspicious about the prepaid debit card system, was somewhat questionable. But there are greater problems with crediting the Department's version of events, which in the end relies on the hearsay account of an uncooperative, unreliable criminal and the presumption that because Respondent received steroids, he wanted steroids. In light of Respondent's testimony about his motives, and the lack of corroboration to the

Department's case, the Court concludes that the Department failed to prove with sufficient and reliable evidence that Respondent intended to possess anabolic steroids or HGH. He thus is found Not Guilty.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner - Trials

APPROVED
AUG 3 2013

RAYMOND W. KELLY
POLICE COMMISSIONER